Syllabus

RUTHERFORD *v.* UNITED STATES

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE THIRD CIRCUIT

No. 24–820. Argued November 12, 2025—Decided May 28, 2026*

Petitioner Daniel Rutherford was convicted of two counts of using and carrying a firearm during a crime of violence, in violation of 18 U. S. C. § 924(c). Petitioner Johnnie Carter was convicted of three § 924(c) violations. At the time each was sentenced, a defendant convicted of two § 924(c) counts was subject to a mandatory 25-year sentence for the second offense that would be "stacked" upon (*i. e.*, run consecutively to) the first offense's mandatory penalty. That sentencing scheme resulted in a 32-year minimum sentence for Rutherford's § 924(c) violations and a 57-year minimum sentence for Carter's violations. Years later, Congress passed the First Step Act of 2018, which eliminated the 25-year stacking requirement for first-time offenders. Rutherford and Carter do not qualify for the Act's reduced penalties because the amendment to § 924(c) does not apply to defendants sentenced before the Act. In separate proceedings below, however, Rutherford and Carter each invoked the nonretroactive change to § 924(c) as a basis for a sentence reduction under § 3582(c)(1)(A)(i). Section 3582(c)(1)(A)(i) (commonly referred to as the "compassionate release" provision) allows a court to reduce a prisoner's term of imprisonment if the court finds, after considering the § 3553(a) factors, that "extraordinary and compelling reasons warrant such a reduction" and that "such a reduction is consistent with applicable policy statements issued by the Sentencing Commission." The courts below held that the nonretroactive change to § 924(c) cannot serve as an "extraordinary and compelling" reason for a reduced sentence. The Third Circuit explained in Rutherford's case that the Commission's 2023 amended policy statement—which adds "Unusually Long Sentence" to the list of "extraordinary and compelling" reasons that might warrant compassionate release under certain circumstances, see USSG App. C, Amdt. 814—"conflicts with the will of Congress" expressed in the statute and thus "cannot be considered in determining a prisoner's eligibility for compassionate release." 120 F. 4th 360, 376. The Court granted certiorari in these consolidated cases to resolve the split of Circuit authority over whether the disparity created by a nonret-

Pre-Publication Version

*Together with No. 24–860, *Johnnie Markel Carter* v. *United States*, on certiorari to the same court.

roactive change to sentencing law is an "extraordinary and compelling reaso[n]" that warrants compassionate release.

Held: When Congress declines to make a sentencing amendment retroactive—as with the change to § 924(c)—the resulting sentencing disparity cannot serve as an "extraordinary and compelling" reason that warrants a sentence reduction under 18 U. S. C. § 3582(c)(1)(A)(i). Pp. 465–473.

(a) The plain text of § 3582(c)(1)(A)(i) empowers a district court to "reduce the term of imprisonment" if it finds, among other things, that "extraordinary and compelling reasons warrant such a reduction." § 3582(c)(1)(A)(i). Under the ordinary meaning of the terms, "extraordinary and compelling" reasons are those that are especially unusual and convincing.

The disparity created by Congress's amendment to § 924(c) does not satisfy this definition. Far from "extraordinary," nonretroactive amendments to criminal penalties are the norm. Changes to statutory penalties usually benefit only future offenders. When Congress deviates from the default by extending the revised penalties to defendants not yet sentenced, the "ordinary practice" is to "withhol[d] that change from defendants already sentenced." *Dorsey* v. *United States*, 567 U. S. 260, 280. Such a disparity is an unexceptional feature of a system in which nonretroactivity is the default.

Page Proof Pending Publication

As for "compelling": It is hard to see how Congress's deliberate decision *not* to extend newly reduced penalties to those already sentenced could be a convincing reason that warrants a sentence reduction. Congress decided to apply the lower prison sentences to some violators of § 924(c) but not others, "reinforc[ing] its interest in finality and avoid-[ing] burdening district courts with additional litigation." *Hewitt* v. *United States*, 606 U. S. 419, 437–438 (plurality opinion). Treating the disparity resulting from § 924(c)'s amendment as a compelling reason for reducing a sentence would undermine Congress's choice to leave the sentence intact. It would also fall well outside the heartland of compassionate release, which has long been defined by a prisoner's personal circumstances, such as medical condition, age, and family circumstances. Pp. 465–467.

(b) Petitioners' arguments to the contrary lack merit. While the terms "extraordinary" and "compelling" leave room for judgment, they are not so flexible as to encompass any consideration. Their meaning depends on context: A reason is "extraordinary" and "compelling" only if it is sufficiently unusual and convincing to "warrant" compassionate release. The disparity resulting from Congress's amendment to § 924(c) is neither "extraordinary" nor "compelling"—rather it tracks ordinary

sentencing practice and reflects Congress's deliberate choice to extend relief to some prisoners and not others.

Petitioners argue that because Congress empowered the Sentencing Commission to describe the grounds for compassionate release with only one express limitation—"[r]ehabilitation of the defendant alone shall not be considered an extraordinary and compelling reason," 28 U. S. C. § 994(t)—Congress impliedly authorized the district court to consider all other relevant information. That argument fails because "'[t]he force of any negative implication . . . depends on context.'" *NLRB* v. *SW General, Inc.*, 580 U. S. 288, 302 (quoting *Marx* v. *General Revenue Corp.*, 568 U. S. 371, 381). By addressing rehabilitation, Congress did not impliedly bless all other considerations; instead, it singled out rehabilitation to break from the old sentencing and parole system.

Petitioners also note that courts ordinarily enjoy broad discretion to consider all relevant information when imposing or modifying a sentence. But petitioners skip a step. Before determining the extent of a reduction based on the § 3553(a) factors, a court must first ensure that a movant is part of the "limited class of prisoners" who are "eligibl[e]" for such a reduction. *Dillon* v. *United States*, 560 U. S. 817, 825, 827. Eligibility depends on whether the prisoner can offer "extraordinary and compelling" reasons that "warrant" compassionate release, not on the § 3553(a) factors. This gatekeeping requirement imposes independent and ascertainable limits on access to compassionate release.

Page Proof Pending Publication

Concepcion v. *United States*, 597 U. S. 481, is not to the contrary. That case involved sentence-modification proceedings under a different provision of the Act, where eligibility for a sentencing reduction was conceded and the only question was what information the court could consider in modifying a sentence. Because the provision of the Act at issue in *Concepcion* lacks any limiting language, we held that a court could consider changes to the Guidelines, as well as intervening facts, when calculating a new sentence under it. *Id.*, at 500. Today's cases differ from *Concepcion* because they concern whether a prisoner is eligible for compassionate release in the first place. And on that score, Congress has "expressly cabined district courts' discretion," *id.*, at 495, by prohibiting a reduction in sentence unless a court finds that "extraordinary and compelling" reasons warrant it.

Finally, petitioners downplay the conflict between the Act and their interpretation of § 3582(c)(1)(A)(i). The Act reflects Congress's choice not to extend relief on a *categorical* basis, but on their approach, a district court could treat the disparity between a pre- and post-Act sentence as one of at least two considerations that, taken together, warrant compassionate release. The implications of petitioners' argument

Syllabus

are sweeping. Under the same logic, could a judge who believes that a mandatory minimum is unduly harsh treat the severity of the sentence as an "extraordinary and compelling reason" for compassionate release? Petitioners declined to rule out this possibility. Yet "[i]t is the legislature, not the Court, which is to define a crime, and ordain its punishment." *United States* v. *Wiltberger*, 5 Wheat. 76, 95. Treating the severity of a mandatory penalty as a reason for compassionate release rejects Congress's judgment that the punishment fits the crime. Petitioners' proposal—injecting other factors into the mix of extraordinary and compelling reasons—does not solve the problem. Pp. 468–472.

(c) Petitioners' contention that the Court's interpretation of § 3582(c)(1)(A)(i) must yield to the Sentencing Commission's 2023 policy statement misunderstands the Commission's role. Congress empowered the Commission to "give meaning" to the compassionate release provision by identifying the circumstances that constitute "extraordinary and compelling" reasons for release. *Loper Bright Enterprises* v. *Raimondo*, 603 U. S. 369, 394. But the Commission's policy statements must be "consistent with" the governing statute, 28 U. S. C. § 994(a), and courts have a duty to "independently interpret the statute and effectuate the will of Congress," 603 U. S., at 395. The statutory text and structure make clear that Congress's nonretroactive change to § 924(c)—considered by itself or in combination with other factors—cannot make a prisoner eligible for compassionate release. To the extent that the Commission's policy statement counsels otherwise, it is invalid. Pp. 472–473.

No. 24–820, and 120 F. 4th 360, No. 24–860, affirmed.

BARRETT, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, GORSUCH, and KAVANAUGH, JJ., joined. SOTOMAYOR, J., filed a dissenting opinion, in which KAGAN and JACKSON, JJ., joined, *post*, p. 473.

David C. *Frederick* argued the cause for petitioner in No. 24–820. With him on the briefs were *Justin B. Berg*, *Alex P. Treiger*, and *Derek C. Reinbold*.

David A. O'Neil argued the cause for petitioner in No. 24–860. With him on the briefs were *Anna Moody*, *Suzanne Zakaria*, and *Steven Tegrar*.

Deputy Solicitor General Feigin argued the cause for respondent in both cases. With him on the brief were *Solici-*

tor General Sauer, Acting Assistant Attorney General Galeotti, Frederick Liu, Tyler Anne Lee, and *Andrew C. Noll.*†

JUSTICE BARRETT delivered the opinion of the Court.

A prison sentence, once imposed, usually cannot be modified by the district court. 18 U. S. C. § 3582(b). But Congress has established several narrow exceptions to this rule. One exception—commonly referred to as "compassionate release"—permits the court to reduce a term of imprisonment if it finds, among other things, that "extraordinary and compelling reasons warrant such a reduction." § 3582(c)(1)(A)(i). We consider whether the sentencing disparity created by Congress's nonretroactive change to § 924(c)'s mandatory penalties can serve as an "extraordinary and compelling reaso[n]" that "warrant[s]" a reduction. § 3582(c)(1)(A)(i). We hold that it cannot.

Page Proof Pending Publication

†Briefs of *amici curiae* urging reversal in both cases were filed for Clinical Law Professors by *Erica Zunkel* and *David H. Korn*; for the Constitutional Accountability Center by *Elizabeth B. Wydra* and *Brianne J. Gorod*; for FAMM et al. by *Jarrod L. Schaeffer* and *Joshua L. Dratel*; for Former Corrections Officials by *Scott P. Lewis*; for the NAACP et al. by *Raymond P. Tolentino, Carlton Forbes, Kristen Johnson,* and *Christopher Kemmitt*; for the National Association of Federal Defenders by *Shelley Fite, Tracy Dreispul, Daniel Habib, Jennifer Niles Coffin,* and *Marisa Taney*; for the New York Council of Defense Lawyers (NYCDL) by *Harry Sandick* and *Celeste L. M. Koeleveld*; for Douglas Berman by *Vincent Levy*; and for Sen. Cory Booker et al. by *Amy Mason Saharia.*

Andrew T. Tutt, Dana Kagan McGinley, and *Nicole L. Masiello* filed a brief for Former Federal Judges as *amici curiae* urging reversal in No. 24–820.

Amelia T. R. Starr filed a brief for The Fortune Society as *amicus curiae* urging reversal in No. 24–860.

Briefs of *amici curiae* were filed in both cases for the Cato Institute et al. by *Matthew P. Cavedon, Brett Tolman,* and *John W. Whitehead*; and for Former Commissioners of the United States Sentencing Commission by *Joshua Matz* and *Trisha Anderson.*